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THE LAW OF USE OF FORCE

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Under international law, States can neither threaten to use force nor use force in their international relations. This rule is found in Article 2(4) of the UN Charter, and is widely regarded as a peremptory norm (**A peremptory norm is a norm from which States cannot depart. This is found in Article 53 of the Vienna Convention on the Law of Treaties, VCLT**).

So the prohibition of the threat or use of force is the most important obligation of States under international law, which seeks, for the most part, to maintain and promote international peace and security. However, despite this prohibition, States continue, to this day, to threaten to use and use force against one another. As we will see later, the UN Charter permits States to use force in certain instances, but States have continued to use force in circumstances not provided for under the Charter.

Before the advent of the United Nations in 1945, States were free to decide whether or not to wage war against one another. There was no strict regulation on the use of force by States; the only form of restraint on States was a moral consideration relating to whether the war was „just“ or not—that is, whether the war would fulfil certain philosophical, religious, and ethical requirements. Further, there was no objective system of determining what was „just“ or „unjust“; hence, the „regulation“ of the use of force during this period was unpredictable. Consequently, States waged brutal wars against one another without legal constraints, until the outbreak of the First World War in 1914. The League of Nations was the first attempt made at regulating the use of force.

THE UN CHARTER AND THE PROHIBITION OF THE USE AND THREAT OF FORCE

Article 2(4) of the Charter of the United Nations (the UN Charter) provides that: **All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any State, or in any manner inconsistent with the Purposes of the United**

Nations.

This is the general rule; it is prohibited, no state is allowed to use force against another state. It is an act of aggression (unlawful use of force by one state against another).

Article 2(4) prohibits force and does not only encourage States to renounce war. Note the use

of „**shall refrain**“ in that provision: this is a command, not a plea. Secondly, in addition to



actual force, Article 2(4) also prohibits the threat of force. This was the first time that this had been done. Thirdly, Article 2(4) prohibits not only war, but also any use of force.

EXCEPTIONS TO THE PROHIBITION OF THE USE OF FORCE

Despite the strict prohibition against the use of force under Article 2(4), the Charter permits certain exceptions to the rule.

The UN Charter provides for three exceptions to the prohibition on the use of force:

1. Use of force in self-defence (**Article 51**)
2. Use of force authorized by the UN Security Council, commonly called „collective security“
(**Chapter VII**).
3. Use of force against former enemy States (**Article 107**).

When the UN Charter was adopted, Germany, Italy, and Japan were regarded as former enemy States because they fought against the rest of the world during the Second World War instigated by the German aggression on various European countries. Article 107 permits a UN member State to attack one of the former enemy States if the UN member State believed that the former enemy was renewing its policy of aggression. However, since all former enemy States are now UN members, Article 107 is regarded as a dead provision.

This leaves us with two exceptions to Article 2(4): self-defence and collective security.

SELF-DEFENCE

Article 51 of the UN Charter provides that: **Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain International peace and security. Measures taken by members in the exercise of this right**

of self-defence shall be immediately reported to the Security Council and shall not in any way affect the authority and responsibility of the Security Council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.

According to this provision, States that have suffered armed attacks can defend themselves either individually or collectively—that is, an attacked State can call on other States to help to



defend it against the attackers. It must be noted that the Charter did not create this right, but merely recognized its existence, hence the phrase „inherent right“. The right of self-defence is innate in the State by virtue of it being a sovereign entity.

It is important to understand the origins of Article 51 in order to appreciate the provision properly. During the San Francisco Conference, several proposals for the Charter were put forward. However, Article 51 was not originally part of the proposed Charter. The original proposal was that all powers to authorize force and to defend States should be given to the Security Council. However, members of the Inter-American System (IAS) attending the Conference were not happy with this position. The IAS was deeply troubled by not knowing what to do if any of its members were attacked by a State and the Security Council was unable to respond as anticipated under Chapter VII of the Charter.

To guarantee its survival, the IAS therefore requested that the UN Charter explicitly recognize its right to act, without waiting for the Security Council. If the UN had acceded to the IAS's request, it would have created a dangerous precedent for the coherence of its regulation of the use of force. Certainly, other organizations may have wanted to make similar requests. However, if it had ignored the IAS's request altogether, this would have meant that the UN was insensitive to the genuine plight of small and weak States right from its inception. So, as a compromise, Article 51 was inserted in the Charter, under which if a State is attacked, it can defend itself—but only until the Security Council has taken those measures prescribed in Article 51.

Article 51 recognises that a state has a right to defend itself if IT HAS BEEN ATTACKED. The attack MUST have already happened. It is also important to note that Article 51 talks about self-defence and not retaliation. These are 2 different things. The right to self-defence is inherent. There must be an attack that is continuous and is likely to continue; whereas retaliation is an attack of revenge.

Article 51 also provides that the matter must be reported to the Security Council. The security of the states rests with UN Security Council.

The right to self-defence is both individual and collective. It can be exercised by the attacked state alone, or the attacked state can call on the help of other states.

The Nicaragua case is the leading authority on self-defence.



NICARAGUA V. UNITED STATES OF AMERICA (1986) ICJ REP 14 (THE MILITARY AND PARAMILITARY ACTIVITIES IN AND AGAINST NICARAGUA CASE, OR THE NICARAGUA CASE)

FACTS

Nicaragua claimed before the ICJ that the USA, through American personnel and foreigners working for the USA, undertook activities that Nicaragua considered to be directed against its legitimate government. Nicaragua also claimed that the USA created, financed, and provided logistical support to the Contras, a Nicaraguan insurgent group. In its counterclaim, the USA stated that its action was in collective self-defence of El Salvador, Honduras, and Costa Rica, countries that it claimed Nicaragua had attacked.

DECISION

While pronouncing on what constitutes „armed attacks“, the Court also pronounced (at [195])

on what constitutes „collective self-defence“ under Article 51:

It is also clear that it is the State which is the victim of an armed attack which must form and declare the view that it has been so attacked. There is no rule in customary international law permitting another State to exercise the right of collective self-defence on the basis of its own assessment of the situation. Where collective self-defence is invoked, it is to be expected that the State for whose benefit this right is used will have declared itself to be the victim of an armed attack.

According to this statement, it is necessary for an attacked State specifically to invite others to defend it. The Court concluded (at [199]) that:

At all events, the Court finds that in customary international law, whether of a general kind or that particular to the inter-American legal system, there is no rule permitting the exercise of collective self-defence in the absence of a request by the State which regards itself as the victim of an armed attack. The Court concludes that the requirement of a request by the State which is the victim of the alleged attack is additional to the requirement that such a

State should have declared itself to have been attacked.

The rationale behind this approach seems fairly obvious: formally requesting assistance for collective self-defence removes the danger of third States taking advantage of a situation and intervening in matters that do not directly involve them.

Nonetheless, the requirement seems overly formalistic. Such a requirement is not obvious

HAMLET: ACT1 SCENE 3



from the provision of Article 51: an armed attack on a State is an open fact in international law and not a secret act that must be brought to the attention of the public by a formal declaration or request.

Furthermore, the Court's reasoning on this point is open to challenge. The absence of a customary international law rule permitting the exercise of collective self-defence without a specific request to that effect should not imply that the act is itself illegal. Perhaps what the Court should have established is that the practice whereby attacked States regularly make requests to others, as a procedural requirement, is established in customary international law. Had it done so, then non-compliance would be treated as a breach of that law.

ANTICIPATORY SELF-DEFENCE

The requirement in Article 51 of the UN Charter that the right of self-defence exists only if an armed attack „occurs“ is a very controversial one. Many States and writers argue that when confronted by an overwhelming sense of danger, such as an imminent attack, States cannot afford to wait for an attack to occur before they act. So, some States argue that, in those circumstances, they can act in anticipation of an attack. This is what the notion of „**anticipatory self-defence**“ implies.

For example, in 1981, Israel attacked the Iraqi nuclear reactor in Osirak and claimed to have acted in self-defence because, it said, Iraq directed its nuclear weapons towards Tel Aviv. However, the Security Council sharply criticized Israel for this action.

The UN Charter does not provide for anticipatory self-defence. As a right, this defence originates from the customary international law principles governing self-defence. The customary rules supporting anticipatory self-defence were laid down in the famous „**Caroline Affair**“ of 1837.

FACTS

The facts of the Caroline Affair arose from a dispute involving the USA and the

UK over some affairs in Canada. In 1837, some Canadians connived with Americans to mount an insurrection against the British authorities, then the colonial powers in Canada. Both rebellions were crushed, but a few rebels managed to escape to the USA, from where they continued their activities. The rebels enlisted the services of the US steamboat, Caroline,



which was used for troops and arms mobilization purposes. The British authorities destroyed the boat and pushed her over the Niagara Falls.

In a follow-up series of communications between the US and British authorities over the affair, it fell on British Secretary of State Daniel Webster to justify the British action to the USA. In his seemingly well thought out letter to Special Minister Ashburton he stated that the USA had fulfilled its own duty as per the non-intervention principle and therefore that Britain must justify its action.

He argued that Britain must demonstrate the:

necessity of self-defence, instant, overwhelming, leaving no choice of means, and no moment for deliberation. It will be for it to show, also, that the local authorities of Canada, —even supposing the necessity of the moment authorized them to enter the territories of the United States at all,—did nothing unreasonable or excessive; since the act justified by the necessity of self-defence, must be limited by that necessity, and kept clearly within it. It must be shown that admonition or remonstrance to the persons on board the ‘Caroline’ was impracticable, or would have been unavailing; it must be shown that daylight could not be waited for; that there could be no attempt at discrimination, between the innocent and the guilty; that it would not have been enough to seize and detain the vessel; but that there was a necessity, present and inevitable, for attacking her, in the darkness of the night, while moored to the shore, and while unarmed men were asleep on board, killing some, and wounding others, and then drawing her into the current, above the cataract, setting her on fire, and, careless to know whether there might not be in her the innocent with the guilty, or the living with the dead, committing her to a fate, which fills the imagination with horror.

KEY POINTS

A State claiming to have taken action in anticipation of an attack must prove that:

(a) **there is overwhelming evidence of imminent attack on it;** (b) **it acts out of**

necessity; and (c) its action is proportionate.

The question of anticipatory self-defence is particularly important for two reasons. First, Article 51 was not designed with nuclear or biological weapons in mind—that is, the two types of weapons that might be used without troops crossing the border of a country.



Furthermore, if the purpose of armed attack is to cause maximum damage to the facilities of another country— especially its military facilities—then we can add technological attacks as another deadly means by which one country can now attack another without visibly crossing its borders.

EXAMPLE

There have been cases in which computer hackers have hacked into the most secretive websites of the intelligence facilities at the US National Aeronautics and Space Administration (NASA). Surely, if this hacking were done with malicious intent (as opposed to misadventure) and serious harm to US military facilities were to occur as a result of infection by a software virus used by the hacker, it would be ridiculous not to regard this as an armed attack.

Secondly, Article 51 did not envisage such phenomena as terrorist organizations becoming one of the most rabid users of force against States. These entities use the most unconventional means in their activities, such as the use of commercial planes by Al Qaeda in its 9/11 attacks.

What these new developments show is that Article 51 has fallen behind contemporary developments in international affairs and technology.

NICARAGUA V. UNITED STATES OF AMERICA (1986) ICJ REP 14 (THE MILITARY AND PARAMILITARY ACTIVITIES IN AND AGAINST NICARAGUA CASE, OR THE NICARAGUA CASE)

At [94], the ICJ declined to comment on anticipatory self-defence, since the issue with which it was confronted with concerned a real attack and not an imaginary one:

ATTACKS CARRIED OUT BY NON-STATE ACTORS

One last issue to consider briefly is the clamour for changes to the structure of the UN Charter. Some writers claim that for example, the 9/11 attacks show that Article 2(4), which applies only to States, has fallen out of step with modern

realities. If the threat or use of force is prohibited only amongst States, but not by or amongst non-State entities, then the Charter might have unwittingly left its greatest objective vulnerable.

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“Armed attack” under Article 51 is an attack perpetrated by a State, and self-defence can be used only against such attacks. After the September 11, 2001 attacks against the United States, the drive towards extending the scope of Article 51 UN Charter to encompass attacks committed by non-State actors has intensified.

The right to attack State territory in response to attacks from non-State actors was advocated by the US Government in its 2016 Report on the use of force, as well as occasionally by other governments invoking the right to self-defence in such circumstances. The proponents have not been uniform in their justification.

Popular as it is among writers, the idea that the concept of armed attack under Article 51 includes attacks by non-State actors is flawed for systemic, policy and evidentiary reasons. The Nicaragua case contains indications against the extension of the concept of armed attack to non-State actors. The Court held that Nicaragua was not liable for allowing weapons to be transported across Nicaraguan territory to insurgents in El Salvador, because Nicaragua had been unable to stop such transport. The Court observed that “even supposing it well established that military aid is reaching the armed opposition in El Salvador from the territory of Nicaragua, it still remains to be proved that this aid is imputable to the authorities of the latter country.” Nicaragua did not deny the fact of arms flow, but denied “that this is the result of any deliberate official policy on its part”. On that basis, the Court concluded that even if such arms traffic did take place, Nicaragua was unable to stop it, and the US had no justification in using force against Nicaragua. The most that could lawfully have been done was to carry out border patrols to prevent these arms penetrating El Salvador.

The ICJ has the claim that non-State actors could perpetrate armed attack within the meaning of Article 51 UNC. In **DRC vUganda**, the Court was as clear on this point as it could have been. There in fact were attacks carried out by irregular forces, yet they were not attributable to the DRC and thus did not constitute an act of aggression committed by that State. Therefore, even if these “deplorable attacks” were cumulative in character, “the Court [found] that the legal and factual circumstances for the exercise of a right of self-defence by Uganda against the

DRC were not present.”

DRC V UGANDA (ARMED ACTIVITIES ON THE TERRITORY OF THE
CONGO) FACTS



The Democratic Republic of the Congo (DRC) instituted proceedings against Burundi, Uganda and Rwanda “for acts of armed aggression committed . . . in flagrant breach of the United Nations Charter and of the Charter of the Organization of African Unity”. Uganda subsequently filed a Counter-Memorial containing three counter-claims. Acts of aggression allegedly committed by the DRC against Uganda; and attacks on Ugandan diplomatic premises and personnel in Kinshasa and on Ugandan nationals.

DECISION

The Court first dealt with the question of the invasion of the DRC by Uganda. After examining the materials submitted to it by the Parties, the Court found that from August 1998, the DRC had not consented to the presence of Ugandan troops on its territory (save for the limited exception regarding the border region of the Ruwenzori Mountains contained in the Luanda Agreement). The Court also rejected Uganda’s claim that its use of force, where not covered by consent, was an exercise of self-defence, finding that the preconditions for self-defence did not exist. Indeed, the unlawful military intervention by Uganda was of such magnitude and duration that the Court considered it to be a grave violation of the prohibition on the use of force expressed in Article 2, paragraph 4, of the United Nations Charter.

The Court also found that, by actively extending military, logistic, economic and financial support to irregular forces operating on the territory of the DRC, the Republic of Uganda had violated the principle of non-use of force in international relations and the principle of non- intervention.

The provisions of Article 2(4) might indeed have fallen behind a little. But this does not mean that we have to review the Charter; if we do so, there will be some instability in the legal regulation of the use of force. What needs to be done is for the international community to approach Charter provisions with some flexibility. For example, under the Security Council resolutions, greater support has been lent to States to take anticipatory self-defence than perhaps Article 51 embodies. Also, we have shown that it is possible to undertake self- defence actions against terrorist

groups. On its own, the ICJ has been able to interpret the provisions of Article 51—especially on whether irregular forces can constitute armed attacks—in more liberal ways than Article 51 suggests. We do not need specifically to change the Charter to incorporate these changes. The institutions of the United Nations must be creative in addressing contemporary issues, so that the widely couched rules of the Charter can be interpreted to cover current trends.



COLLECTIVE SECURITY

We previously discussed that the exceptions to the use of force. We discussed the use of force as self-defence as one of the exceptions. The other exception to the use of force is any action duly authorized by the UN Security Council. These are generally referred to as „collective security“ measures, because they are, simply put, actions taken or authorized by the Security Council, on behalf of the international community, to enforce international law.

THE MEANING OF ‘COLLECTIVE SECURITY’

There is no universally agreed definition of collective security. Nonetheless, there have been several attempts to define collective security, but the idea that **the concept embodies the use of force by the international community to deter aggression** finds near universal endorsement.

Collective security is the preponderant use of force to maintain international peace and security. One must bear in mind at all times that collective security must be approved by a competent organ of the international community. Collective security does not only consist of use of force but involves keeping the peace to prevent aggression.

THE UNITED NATIONS AND COLLECTIVE SECURITY

The UN Charter, which is the treaty establishing the United Nations, is divided into several chapters, each of which covers an issue relevant to the objectives or operations of the organization. Chapter VII deals with collective security powers, and sets out the various steps that the Security Council will take, from the moment at which international peace and security is threatened or breached, to when the Security Council restores the peace.

Once the international peace is breached, the measures available to the Security Council do not start with the use of preponderant force against the party in breach of the peace; rather, collective security starts with the Security Council taking a series of steps aimed at calming the tension between the States involved in a conflict. These measures are detailed in the provisions of Chapter VII, starting with Article 39 and ending with Article 42. In order to understand how the

Security Council facilitates collective security in practice, we will now undertake a brief analysis of each of the provisions and demonstrate the process from start to finish.

ARTICLE 39: DETERMINING THAT AGGRESSION OR THREAT TO, OR BREACH OF, PEACE EXISTS:



Whenever there is a problem anywhere in the world, such as the violation of Article 2(4) of the UN Charter by a State, the first thing that the UN Security Council must do is to inform the international community formally that there is such a problem, and that the problem threatens or has breached international peace. In legal language, this is called a

„**determination**“ that there is a threat to peace, breach of the peace, or act of aggression. The Security Council makes this determination by adopting a resolution, usually under Chapter VII of the UN Charter.

A resolution is a written motion adopted by a deliberative body—in this case, the UN Security Council.

Article 39, which empowers the Security Council to make a determination, provides that: **The Security Council shall determine the existence of any threat to the peace, breach of the peace, or act of aggression and shall make recommendations, or decide what measures shall be taken in accordance with Articles 41 and 42, to maintain or restore international peace and security.**

The question then that arises is why must the UN Security Council make a formal determination under Article 39? After all, when there is a crisis? (There is usually substantial information about the incident provided by different media.)

The reason is simple. The power of the Security Council to authorize collective security measures depends on the nature of the crisis.

If a crisis is purely of an internal nature—that is, if it is happening inside the territory of a State—the United Nations cannot ordinarily intervene in the matter. This is because, according to **Article 2(7)** of the UN Charter on non-intervention:

It states: **Nothing contained in the present Charter shall authorize the United Nations to intervene in matters which are essentially within the domestic jurisdiction of any state or shall require the Members to submit such matters to settlement under the present Charter; but this principle shall not**

prejudice the application of enforcement measures under Chapter VII.

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It is obvious from this provision that the UN can intervene in crises occurring inside a State only if it (the UN) is taking an enforcement action. An „enforcement action“ is another name for collective security. However, before the UN can take an enforcement action, it must satisfy itself that the crisis occurring inside a State threatens international peace and security.

Therefore, by making a formal determination under Article 39, the Security Council fulfils a legal requirement that a crisis is an international one and assures the entire world that it is not meddling in the internal affairs of UN member States.

KEY POINT

In general, the United Nations cannot intervene in crises occurring inside the territory of its member States. However, it can intervene if such internal matters threaten international peace and security.

THE COMPONENTS OF ARTICLE 39 DETERMINATION

Normally, a determination by the Security Council under Article 39 should state clearly the exact nature of the crisis to which it is responding—that is, whether the crisis merely threatens international peace and security, or breaches it, or is an act of aggression. However, the Security Council, a political organ, does not like to be seen to be judging UN member States. If the Security Council uses words such as „aggression“ or „aggressive behaviour“ to describe States“ behaviour, this may affect its subsequent intervention. Also, States are generally very sensitive to being labelled as aggressors, and they tend not to cooperate with other States and institutions when described in such terms.

So, whenever States commit aggression, such as when Iraq attacked Kuwait in 1990 or when North Korea attacked South Korea in 1950, the Security Council uses gentler words to describe their behaviour.

EXAMPLES

UNITED NATIONS SECURITY COUNCIL RESOLUTION 84 ON THE INVASION OF SOUTH KOREA BY NORTH KOREA (1950)

The Security Council,

Having determined that the armed attack on the Republic of Korea by forces from North Korea constitutes a breach of the peace...

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UNITED NATIONS SECURITY COUNCIL RESOLUTION 660 ON THE INVASION OF KUWAIT BY IRAQ (1990)

Adopted by the Security Council at its 2932nd meeting, on 2

August 1990 The Security Council,

Alarmed by the invasion of Kuwait on 2 August 1990 by the military forces of Iraq, Determining that there exists a breach of international peace and security as regards the Iraqi invasion of Kuwait,

Acting under Articles 39 and 40 of the Charter of the United Nations,

1. Condemns the Iraqi invasion of Kuwait...

In neither of these resolutions did the Security Council use the word „aggression“, despite the fact that there were acts of aggression in both cases.

We mentioned earlier that the Security Council avoids name-calling so as not to be seen as judging States. But there is also a legal reason why the Security Council does not use the word „aggression“ as such. Aggression is a very difficult term to define; to refer to certain behaviours as „aggressive“ when the UN Charter does not define the term „aggression“ may pose serious legal problems for the Security Council.

THEREFORE:

The UN Security Council must make an Article 39 determination before commencing collective security measures under Chapter VII of the UN Charter. This determination is important because it qualifies the matter to which the Security Council is responding as „international“, so as not to bar UN action under any of the Charter provisions such as Article 2(7).

The Security Council usually adopts terms that are less judgemental in describing the actions of States. This includes not using the word „aggression“, because such

words could worsen tension and make political resolution of conflicts more difficult.

ARTICLE 40: PROVISIONAL MEASURES



Once the Security Council has formally determined that a threat, or breach of peace, or an act of aggression exists, the next thing that it must do is try to reduce the tension between the States concerned. Article 40 of the UN Charter provides that:

In order to prevent an aggravation of the situation, the Security Council may, before making the recommendations or deciding upon the measures provided for in Article 39, call upon the parties concerned to comply with such provisional measures as it deems necessary or desirable. Such provisional measures shall be without prejudice to the rights, claims, or position of the parties concerned. The Security Council shall duly take account of failure to comply with such provisional measures.

The measures referred to in this provision are called provisional measures because they are temporary. They are designed basically to give the Security Council the opportunity to deliberate on how best to respond to the conflict and also to give the concerned States the opportunity to rethink their actions.

In practice, the Security Council will often impose the provisional measures in the same resolution in which it makes a determination under Article 39. An example of this is Resolution 660 adopted in 1990, in which the Security Council condemned the action of Iraq, on the one hand, and called on that country and Kuwait to take steps to resolve the situation and their differences, on the other. The Security Council's instruction to Iraq was that it must immediately withdraw its troops from Kuwait, but it also instructed both countries to begin „intensive negotiation“ for the resolution of their differences. So Articles 39 and 40 are combined here—the Security Council recommending and, at the same time, deciding.

THEREFORE:

Once the UN Security Council makes a determination, it will usually follow this with provisional measures. Provisional measures are intended to enable parties to a

conflict to rethink their action and the Security Council to consider how best to proceed. The Security Council will often make a determination and impose provisional measures in the same resolution.

THE DIFFERENCE BETWEEN ‘RECOMMENDATIONS’ AND ‘DECISIONS’



A recommendation made by the Security Council to members of the UN under Chapter VII is, strictly speaking, not binding on UN members. Being a recommendation, it has no force of law. In contrast, a decision of the Security Council is an obligation that UN members must implement. This is not merely because it is called a „decision“, but also because **Article 25** of the UN Charter states that: **the Members of the United Nations agree to accept and carry out the decisions of the Security Council in accordance with the present Charter.**

The types of provisional measure that the Security Council may recommend or decide under Article 40 vary. Usually, the Security Council will simply ask conflicting States to refrain from doing anything that could worsen the situation. However, the Security Council might also request such States to take some specific measures, such as entering into negotiation, with a view to resolving the dispute between them.

What needs to be noted here is that regardless of what provisional measures the Security Council recommends or on which it decides, these do not affect the rights and positions of the concerned States. This means that whether a State has been aggressive towards another is not judged definitively simply because the Security Council asks both States to start discussing their problem. For example, the fact that the Security Council asks the two States to refrain from engaging in further acts that could worsen the situation does not affect the responsibility of the aggressor State to repair the damage that its action has caused to the attacked State.

THEREFORE:

There are several types of provisional measure. These include asking conflicting States to refrain from worsening the situation, commencing negotiations in order to resolve the dispute, and so on. The measure recommended or decided on by the Security Council depends on the particular situation.

ARTICLE 41 AND NON-FORCIBLE MEASURES:

So far, two steps in the Chapter VII process have been discussed: making a

determination and imposing provisional measures on concerned States. Once the Security Council has imposed provisional measures, the road is clear for it to take other measures. The first set of such measures, which do not involve the use of force, are listed in **Article 41** of the UN Charter thus:



The Security Council may decide what measures not involving the use of armed force are to be employed to give effect to its decisions, and it may call upon the Members of the United Nations to apply such measures. These may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio, and other means of communication, and the severance of diplomatic relations.

From this provision, we see clearly that the process seems to have progressed from the Security Council simply trying to cool the tempers of the concerned States to it doing something much stronger. The Security Council will impose Article 41 measures either because it sees that one or all parties to the conflict has, or have, refused to mend their ways or begin negotiations, as it is hoped that they will do under Article 40.

As we recall from the last sentence in Article 40, the Security Council must take account of the failure of the provisional measures before going to Article 41. It would be illogical if the Security Council were to progress to Article 41 when the conflicting States had already complied with its measures under Article 40.

However, practice shows that aggressor States do not usually comply with provisional measures. Examples include North Korea in 1950 and Iraq in 1990. Therefore, following Resolution 660 imposing provisional measures on Iraq and Kuwait, the Security Council imposed economic sanctions, pursuant to its Article 41 powers. But it must be noted that, in this situation, sanctions were imposed only on Iraq, being the State that refused to comply with the provisional measures.

ECONOMIC SANCTIONS: Also known as „trade embargoes“, these are measures aimed at preventing States from entering or continuing any commercial activities with a particular State. In the context of collective security, they are usually imposed on an offending State in order to weaken its financial and economic powers, in the hope that this will make the State more readily agreeable to the will of the international community.

THEREFORE:

Article 41 measures consist mainly of economic embargoes, although, allowance is given for certain trading activities to take place. Thus States can carry on trading with a sanctioned State in order to enable the latter to obtain food, medicine, and humanitarian needs for its



population. It is important for the Security Council to take note of the failure of a State to comply with its provisional measures (under Article 40) before imposing sanctions (under Article 41) on it.

ARTICLE 42: FORCIBLE (ENFORCEMENT) ACTION ON RECALCITRANT STATES

So if, after they are imposed, sanctions do not achieve their aims, what next?

Article 42 of the UN Charter answers this question thus:

Should the Security Council consider that measures provided for in Article 41 would be inadequate or have proved to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Such action may include demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations.

The various measures listed in this provision are what we call „enforcement actions“ or

„collective security measures“. They are mainly designed to bring a State, which has so far

failed to comply with Articles 40 and 41 measures, finally to its knees.

We need to pay careful attention to the wording of this provision. It is obvious from the provision that the UN Security Council does not have to impose Article 41 sanctions before imposing the forcible measures in Article 42 on a State.

Article 42 contains a crucial requirement: the Security Council must first determine that the sanctions imposed by Article 41 have proved inadequate—that is, the sanctions are either ineffective or simply not adequate to bring about the desired change. This means that, after imposing Article 41 measures, the Security Council is not at liberty to impose forcible measures under Article 42 as a matter of choice. The provisions of the Charter do not permit this. Once it chooses to impose economic sanctions, the Security Council must wait to determine whether or not the sanctions are effective.

THEREFORE:

The Security Council can impose military measures on a State without first imposing economic sanctions on it if it decides that imposing economic sanctions will not achieve the desired results. The Security Council can impose military measures on a State after it has imposed economic sanctions on it. If the Security Council decides to impose economic



sanctions, then it must wait to see whether or not such sanctions work before imposing military measures.

The reason for requiring the Security Council to show that sanctions have failed before authorizing force under Article 42 is fairly straightforward. The kinds of measures contained in Article 42 are not such that they should be imposed with levity: they are the most serious measures available to the international community.

If Article 42 measures fail to solve a situation, there is nothing else to be done—at least as far as collective security is concerned. Therefore the Security Council needs to demonstrate to the world that it has no other choice than to employ these measures. It is as though the Security Council is telling the world: „Look— we imposed provisional measures, but this State failed to comply. We imposed economic measures, but they have failed to have any meaningful impact. So we have no choice other than to use military force against this State in order to reverse the undesirable situation, and to restore international peace and security.“

If a State behaves in a way that leaves the Security Council with no choice other than to authorize Article 42 measures against it that State is undoubtedly in trouble. Collective security measures may involve thousands of foreign troops entering the country, attacking its military facilities, and destroying its defensive powers. These are measures that can be taken using land, sea, and air powers.

The measures that the Security Council can take under Article 42 do not stop at defeating the military capacities of the State in question; the Security Council can also take follow-up measures, such as authorizing a cut in the size of the military of that country, so that it will not be in a position to repeat such unlawful acts, and the Security Council can prescribe the amount of natural resources that the country can sell (and to whom), in order to control how much funds are available to the aggressor government. Collective security measures, at this stage, can be very debilitating and humiliating to a country at the receiving end.

This is why they are not to be treated lightly, but with the utmost consideration. The gravity of Article 42 measures is revealed by the fact that, in 78 years of the UN's existence, only once has the Security Council authorized these measures (in

Iraq in 1990)—and even then some of its members queried its process, although they did not prevent the measures.

ARTICLE 43 AND THE ENVISAGED SECURITY COUNCIL FORCES



The questions that we must ask ourselves now are: how does the Security Council intend to effect Article 42 measures? Can the Security Council force States to use force against an aggressor? These questions are important because, with regard to Article 40, only the conflicting States have to comply with the measures of the Security Council. However, once Article 42 measures are imposed, it means that the Security Council needs forces, thousands of land soldiers, air force men and women, and naval forces to implement resolutions. So where does the Security Council get these forces from?

Article 43 provides an answer to this question:

All Members of the United Nations, in order to contribute to the maintenance of international peace and security, undertake to make available to the Security Council, on its call and in accordance with a special agreement or agreements, armed forces, assistance, and facilities, including rights of passage, necessary for the purpose of maintaining international peace and security.

When the establishment of the UN was being negotiated at San Francisco, one of the most important issues before the conference was how the Security Council would raise its forces for the purpose of collective security.

Several proposals were advanced. One was that each member of the organization should select members of their own national contingents and dedicate them to the Security Council, so that whenever the Security Council needed them, they would be ready to go. This was considered too expensive for most member States, many of which were very poor; hence, to expect them to continue to maintain forces specially dedicated to the Security Council would have been outrageously expensive, especially since the Security Council would not necessarily require these forces frequently. The other proposal was that, instead of dedicating specific members of national forces to the Security Council permanently, it would be more efficient only to earmark such forces—that is, nominally to identify them so that if the need were to arise, they would immediately be deployed. This was the proposal that became Article 43.

Many problems prevented Article 43 from being realized. First, many States required the approval of their domestic legislature before they were able to deploy their troops overseas.

Secondly, the existence of deep suspicion among UN members—especially the USA and the Soviet Union—meant that these States could not agree on how to deploy troops, who should



command them, on what principles, and so on. All of these matters hampered the realization of Article 43. France is the only country ever to have promised some of its national troops for the Security Council's use.

Due to the failure of the UN Security Council to secure the forces agreed to by UN members under Article 43, whenever it imposes Article 42 measures, the Security Council has always called on the coalition of „able and willing States.“

Because it can recommend only that States take necessary action, this means that the Security Council cannot obligate States to act. Thus States will respond only if they are „willing“ and, of course, „able“ to do so, not because they feel obligated. Also, the Security Council can ask States only to take „necessary means“; it cannot prescribe any specific means, as it could easily have done with Article 43 forces. In practice, however, a good number of States have always responded to the Security Council's call to act under Article 42.

THEREFORE:

The Security Council does not have its own forces. Forces are contributed by States that are

„able and willing“ to implement Security Council resolutions. Nevertheless, the Security Council cannot compel States to support its actions.

Whenever the Security Council asks States to take „necessary measures“ to restore peace and security, this is generally regarded as asking States to use forcible measures under Article 42 to enforce the will of the international community against a State that has breached the peace.

CONCLUSION

Collective security is written into the UN Charter mainly to provide the world with a better security system. It posits that any breach of that peace will be met with severe punishment. Therefore, in a real sense, collective security is the other side of the coin to the prohibition of the use of force. One rule says „do not use force at all, except in self-defence or when authorized by the Security Council“, while the other says „we will act decisively against any violator of that rule on behalf of humankind“.

Nonetheless, as a system for enforcing the prohibition of force, collective security is both effective and problematic. When used in a decisive manner, collective security can be a powerful tool. This was the case when the Security Council led the charge against Saddam Hussein's Iraq after that country attacked Kuwait in 1990 and was used in Libya in 2011. However, when collective security is hindered from functioning because of political considerations, it can be a very useless instrument. The most recent example of collective



security failure is the Security Council's failure to stop the Syrian government's onslaught on its own people which has led to thousands of deaths and catastrophic destruction.



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